DIVISION BENCH ITEM NO.3

NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH
PRAYAGRAJ

CP (CAA) No.25/ALD/2023 IN CA (CAA) No.23/ALD/2023
(Second Motion)

Order dated : 20th December, 2023

Under Section 230-232 of the Companies Act, 2013

In the matter of Scheme of Amalgamation :

AMRIT AGRO INDUSTRIES LIMITED
CIN: U01111UP1985PLC010776
Having its Registered Office at: CM-28 First Floor), Gagan Enclave, Amrit Nagar, G T Road, Ghaziabad – 201009, Uttar Pradesh PAN: AAACA0374N

……. **Petitioner / Transferor Company No.1**

AND

AMRIT CORP. LIMITED
CIN: U15141UP1940PLC000946
Having its Registered Office at CM-28 (First Floor), Gagan Enclave, Amrit Nagar, G T Road, Ghaziabad – 201009, Uttar Pradesh. PAN: AAFCA7387Q

……. **Petitioner / Transferee Company No.2**

Coram:

HON'BLE MR. PRAVEEN GUPTA, MEMBER (JUDICIAL)
HON'BLE MR. ASHISH VERMA, MEMBER (TECHNICAL)

Present :

For the Petitioner Companies : *Sh. Anil Kumar, PCS*

ORDER

1. This is a joint Second Motion company petition filed by the Petitioner Companies namely, **AMRIT AGRO INDUSTRIES LIMITED** (Petitioner/ Transferor Company No.1) and **AMRIT CORP. LIMITED** (Petitioner/ Transferee Company No.2) in terms of Rule 16 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (for Brevity "Rules).

-Sd- ***-Sd-***

2. The petitioner companies have prayed for sanctioning of the Scheme of Amalgamation in the petition and notices to be issued to the authorities concerned in relation to the date of hearing of the petition and calling for objections. The First Motion application was filed seeking directions for dispensation of the requirement of convening the meetings of Secured and Unsecured Creditors of Transferor Company/Applicant No.1 and Transferee Company/Applicant No.2 and further prayed that to convene the meetings of the Equity Shareholders of both the Transferor Company/ Applicant No.1 and Transferee Company/Applicant No.2 in the Applicant Companies vide CA (CAA) No.23/ALD/2023 and based on such application moved under Sections 230-232 of the Companies Act, 2013, (for brevity, the 'Act'), necessary directions were issued on 5th October, 2023. In the said order, the meeting of Equity Shareholder of the Transferor Company/ Petitioner No.1 was directed to be convened and the meeting of Secured Creditors of the Transferor Company/ Petitioner No.1 was directed to be dispensed with. Additionally, since there are no Unsecured Creditors in the Transferor Company/ Petitioner No.1, no direction was passed.

3. The main objects, date of incorporation, authorized and paid-up share capital, and the rationale of the Scheme have been discussed in detail in the order dated 5th October, 2023.

4. Notices are accordingly issued in the present petition to be served by the Petitioner Companies through speed post within two weeks to the following Authorities along with a copy of this petition in soft copy as well as hard copy :-

(i) Central Government through Regional Director (Northern Region), Ministry of Corporate Affairs, New Delhi;

(ii) Registrar of Companies, Uttar Pradesh, Kanpur;

-Sd- ***-Sd-***

(iii) Official Liquidator, Allahabad; and

(iv) Jurisdictional Income Tax Authority by mentioning the PAN of the Company along with the copy of this petition in soft copy as well as hard copy.

5. Additionally, notice be issued to the Income Tax Department through the Principal Chief Commissioner of Income Tax, Lucknow mentioning the Assessing Officer with whom the petitioner companies are getting assessed as informed by the Ld. Counsel for the petitioner as per the PAN of the petitioner companies.

6. In addition to the above public notices, the notice of hearing will also be advertised in "Financial Express" in English and "Jansatta" in Hindi language, having wide circulation in Ghaziabad and Gautam Budh Nagar of the State of Uttar Pradesh and NCR Region Editions by not less than 10 days before the next date fixed for hearing.

7. The petitioner companies shall at least 7 days before the date of hearing of the petition, file an affidavit of service regarding newspaper publication, with newspaper clippings, as well as service of notices on the authorities specified above. Objections, if any, to the 'Scheme' contemplated by the authorities to whom notice has been given, may be filed within 30 days of receipt of notice failing which, it will be considered that there is no objection to the approval of the 'Scheme' on the part of the authorities and this Tribunal will proceed in the matter, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder. The petitioner companies shall also file an affidavit stating the objections received from public pursuant to publication of notice of hearing in the newspapers.

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8. The next date of hearing of the petition shall be on 22.02.2024 for further consideration of the approval of the scheme as contemplated between the petitioner companies.

9. The registry shall also report before the date fixed for next hearing, as to whether any objections have been received to the proposed 'Scheme'.

-Sd-
(Ashish Verma)
Member (Technical)

-Sd-
(Praveen Gupta)
Member (Judicial)

20th December, 2023

Kavya Prakash Srivastava
(Stenographer)